

**LAKES TREATMENT CENTER, INC., et al v RESORT AT LAKE
TULLOCH, LLC, et al**

21CV45585

**PLAINTIFF'S MOTION TO FOR LEAVE TO FILE THIRD
AMENDED COMPLAINT; DEFENDANT RESORT AT LAKE
TULLOCH, LLC'S MOTION TO COMPEL PRODUCTION OF
DOCUMENTS IN AMENDED DEPOSITION NOTICE AND
SANCTIONS**

This case stems from a property dispute between The Lakes Treatment Center, Inc. ("Lakes") and Bernadette Cattaneo ("Cattaneo") (collectively "Plaintiffs") and The Resort at Lake Tulloch, ("Resort"), Narullah Safdari ("Safdari"), Odell Tristin ("Tristin"), Michael Van ("Van"), Andreas Ambramson ("Ambramson"), and Diamond Dirt LLC ("Diamond") (collectively, "Defendants.")

Plaintiff's Motion for Leave to File a Third Amended Complaint is **DENIED** for failure to follow Local Rule 3.3.7, without prejudice to refile.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

BETTENCOURT v NORCAL GOLD dba RE/MAX GOLD, et al

23CV47084

DEFENDANTS' MOTION FOR JUDGMENT ON THE PLEADINGS

This matter involves a residential real estate dispute between Plaintiff Darren Bettencourt ("Plaintiff") and Defendants Norcal Gold, Inc. dba Re/Max Gold ("Gold"), Traci Hatt ("Hatt"), Kirk Kercielich ("Kercielich"), Arlene Vierra ("Vierra"), Anne Almeida ("Almeida") and Powerhouse Realty ("Powerhouse").

Now before the Court is a motion for judgment on the pleadings ("MJOP") brought by Vierra, Almeida, and Powerhouse (collectively "Moving Defendants.")

I. Factual and Procedural Background

Powerhouse is a licensed real estate broker. (FAC ¶ 4.) Vierra is employed by Powerhouse.

Plaintiff contracted with Vierra and Powerhouse to list his family dairy and 501 acres of land. (FAC ¶ 5.) After that sale, Vierra assisted Plaintiff in making a 1031 exchange for real property located at 271 Calypso Beach Drive in Copperopolis, California ("Property") (*Ibid.*) Plaintiff, upon the advice of Moving Defendants, purchased the Property on December 31, 2021, for \$795,000.00. Plaintiff alleges that Moving Defendants made "clear and unambiguous promises to act in good faith and honestly represent" Plaintiff in the purchase of the Property. (FAC ¶ 23.) Plaintiff alleges he relied on those representations in purchasing the Property. (*Ibid.*)

Between December 2022 and February 2023, the Property suffered significant water damage to the basement due to a failure to stabilize the soil and prepare the foundation. (FAC ¶ 25.) The cost to Plaintiff to remedy the failure is over \$146,000.00. (*Id.* ¶ 26.)

II. Legal Standard

A motion for judgment on the pleadings serves the same function as a demurrer but is made after the time for demurrer has expired. (Code Civ. Proc., § 438(c)(2); *Cloud v.*